

Executive Engineer, Electricity Distribution v. Smt. Sunita Devi

High Court of Judicature at Allahabad · Single Judge · 21 September 2022 · WRIT-C No. 27923 of 2022 · WRIT - C No. - 27923 of 2022 · **Notice issued; listed after exchange of affidavits.**

HEADNOTE

On a licensee's writ against a Permanent Lok Adalat award allowing a consumer's electricity-bill claim, the Allahabad High Court recorded that the challenge — that the consumer ought first to have sought bill adjustment under the Electricity Act, 2003 and the Electricity Supply Code, 2005 — required consideration, issued notice, and listed the petition after exchange of affidavits, without deciding the merits.

FACTUAL SUMMARY

The Executive Engineer, Electricity Distribution, petitioned the Allahabad High Court against a Permanent Lok Adalat order dated 2 May 2022 in P.L.A. Case No. 99 of 2019 allowing Smt. Sunita Devi's claim. Counsel submitted that the award was patently illegal because, before approaching the Permanent Lok Adalat, the consumer was required first to seek adjustment or reduction of the electricity bill from the distribution authorities under the Electricity Act, 2003 and the Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

interlocutory listing of writ against PLA electricity-bill award

HOLDING

The High Court admitted the licensee's writ against the Permanent Lok Adalat award dated 02.05.2022, holding only that the matter requires consideration, and directed notice with time to file counter and rejoinder affidavits. No construction of the Electricity Act, 2003 or the Electricity Supply Code, 2005 was rendered. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction Notice-and-list order on a writ challenging a Permanent Lok Adalat electricity-bill award; the pleaded need to exhaust Supply Code / Electricity Act bill-adjustment remedies before the PLA is not decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT AWARD WAS ILLEGAL BECAUSE THE CONSUMER DID NOT FIRST SEEK BILL ADJUSTMENT OR REDUCTION FROM THE DISTRIBUTION AUTHORITIES UNDER THE ELECTRICITY ACT, 2003 AND THE ELECTRICITY SUPPLY CODE, 2005.

Court only recorded that the matter requires consideration and issued notice. ¶ 1